Calendar Line 1

Case Name: *James Choi vs WESTFIELD, LLC, a Delaware Limited Liability Company et al*
Case No.: 25CV456698

On January 16, 2025, Plaintiff filed a complaint against five named defendants. Since that time, Plaintiff seems to have been challenged in timely, and perhaps substantively, complying with his discovery obligations. As a result, the Court has sanctioned Plaintiff for discovery abuse on April 8, 2026 (Order filed May 7, 2026) and April 17, 2026 (Order filed May 15, 2026). The instant motion is the third motion to compel brought against Plaintiff for failure to provide timely discovery responses and more are on the horizon. Plaintiff should be reminded that "[i]t is a central precept to the Civil Discovery Act of 1986 (§ 2016 et seq.) … that civil discovery be essentially self-executing. [Citation.]" [Citation.] A self-executing discovery system is "one that operates without judicial involvement." (2 Hogan & Weber, Cal. Civil Discovery [(2d ed. 2005) Sanctions,] § 15.4, pp. 15-7 to 15-8.)" (*Clement v. Alegre* (2009) 177 Cal.App.4th 1277, 1291-1292.) Maybe it is not too late to change course.

On December 29, 2025, Defendant Nordstrom served on Plaintiff Special Interrogatories, Set One. Plaintiff's responses were due no later than January 30, 2026. Plaintiff did not serve responses by that date. Nordstrom understandably filed this motion asking the Court to compel Plaintiff's responses to Nordstrom's Special Interrogatories, Set One, without objection, and to impose monetary sanctions against Plaintiff and his attorney in the amount of $2,073.00.

Plaintiff's opposition to the motion was due May 22, 2026. Plaintiff has not filed any opposition. "[T]he failure to file an opposition creates an inference that the motion … is meritorious." (*Sexton v. Super Ct.* (1997) 58 Cal.App.4th 1403, 1410; *Laguna Auto Body v. Farmers Is. Exchange* (1991) 231 Cal.App.3d 481, 489 ["appellants had ample opportunity to present their arguments and excuses to the trial court. Instead, they failed to file opposition to the motion to compel …, leading the trial court … to presume they had no meritorious arguments"].)

With admirable diligence and candor, Nordstrom has advised the Court that on May 13, 2026, Plaintiff finally served responses to Nordstrom's Special Interrogatories, Set One. Those responses included objections, and Norstrom asserts that most of the answers are vague, ambiguous, conclusory, and incomplete. Nordstrom asks the Court to compel Plaintiff to further respond to Nordstrom's Special Interrogatories, Set One, without objection (pursuant to Code of Civ. Proc. § 2030.290(a)), and with substantive answers "within a specific number of days that this Court deems reasonable after Defendant Nordstrom serves its meet-and-confer letter on Plaintiff." Nordstrom maintains its request for sanctions.

The trial Court is vested with substantial discretion when there was a failure to respond to discovery before the motion to compel was filed but responses are served thereafter. (*Sinaiko Healthcare Consulting, Inc. v. Pac. Healthcare Consultants* (2007) 148 Cal.App.4th 390, 409.) Here, Nordstrom's request is reasonable and serves the best interest of judicial economy. Plaintiff failed to timely serve interrogatory responses. Plaintiff has thus "waived any right to exercise the option to produce writings under Section 2030.230, as well as any objection to the interrogatories, including one based on privilege or on the protection for work product." (Code Civ. Proc., § 2030.290(a).) By itself, the fact that Plaintiff has responded with any objections at all clearly shows that the late responses have not mooted the issues raised by the motion. Nordstrom's other concerns with the late responses might also be well taken, but the Court will give the parties an opportunity to resolve that question informally first.

For these reasons:

1) Plaintiff's counsel shall meet and confer with Nordstrom's counsel either in person, by telephone, or by video conference not later than June 12, 2026, to attempt to informally resolve all remaining issues with the current state of Plaintiff's late responses;

2) Plaintiff shall serve further verified, code-compliant responses ***without objections*** to Nordstrom's Special Interrogatories, Set One, not later than June 26, 2026;

3) If any issues remain after service of Plaintiff's further responses, the parties shall file a *joint* statement no later than July 7, 2026, which shall identify the remaining items in dispute and the reasons why further responses should/should not be compelled.

4) The matter is CONTINUED to July 10, 2026, at 9:00 a.m. in Department 13 for further proceedings consistent with this order.

In addition, Nordstrom's request for monetary sanctions with respect to the instant motion is well taken. Plaintiff's failure to serve timely responses necessitated the filing of this motion; Plaintiff's late responses with, at minimum, inappropriate objections have not mooted the issues; Plaintiff has been completely silent as far as any opposition or formal filing as to this motion; and there is no evidence of substantial justification or other circumstances to excuse Plaintiff's delinquency or render the imposition of the sanction unjust. Therefore, Plaintiff and his counsel shall pay monetary sanctions in the amount of $2,073.00 to Defendant Nordstrom within 30 days of the date of service of the final order. (Code Civ. Proc., § 20230.290.)

The Court will prepare the final order.

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Calendar Line 3

Case Name: *Ravi Vou v. County of Santa Clara*
Case No.: 25CV463523

Before the Court is Defendant County of Santa Clara's ("Defendant" or the "County") demurrer to the Second Amended Complaint ("SAC") filed by Plaintiff Ravi Vou ("Plaintiff"). Pursuant to California Rule of Court 3.1308, the Court issues its tentative ruling as follows:

According to the allegations of the SAC, Plaintiff was hired by Defendant as a Hospital Services Assistant. (SAC, ¶ 14.) On or around October 9, 2021, Plaintiff was involved in a work-related accident where she fell and injured herself at St. Louise Regional Hospital ("the Hospital"), owned and operated by Defendant. (*Ibid*.) The injuries resulted in cervical disc disorder, strain or muscle, fascia and tenon of lower back, rotator cuff tear, and rupture of right shoulder. (*Ibid*.) Plaintiff was thereafter restricted from lifting or pulling more than 10 pounds and her restrictions were presented to the County.

On or around December 22, 2021, the County approved Plaintiff for modified duty for 12 weeks. (SAC, ¶ 15.) The modified duty required her to essentially perform the same functions as when she was healthy and she was able to perform these essential functions. (*Ibid*.) However, before the 12-week period ended, on or around February 9, 2022, the County terminated her modified duty and informed her it could not accommodate her further until she was cleared for full duty without restrictions. (*Id*., ¶ 16.) The day before the modified duty was terminated, Plaintiff was involved in an incident where she was assigned to make sure a patient did not get out of bed and was instructed to call for help when the patient got out of bed. (*Ibid*.) Plaintiff called for help when the patient got out of bed, but nobody came to help her. (*Ibid*.) Plaintiff was hurt when the patient put his leg on her. (*Id*., ¶ 17) Thereafter, the County terminated any further accommodation for Plaintiff. (*Id*. ¶ 17.) Plaintiff was told to stay home without pay. (*Id*. at ¶ 22.)

Plaintiff continued to have the same physical restrictions and communicated these to the County, but the County refused to engage in an interactive process or accommodate her restrictions. (SAC, ¶¶ 23-24.) The County did not allow Plaintiff to return to work despite having modified work available. (*Id*., ¶ 24.) Instead, the County chose to place her on an involuntary leave of absence. (*Ibid*.)

On January 5, 2024, the County notified Plaintiff that it was unable to accommodate her work restrictions, that her two-year absence from the department was a hardship, and if she was unable to return to work, she may be eligible for disability retirement. (SAC, ¶ 26.) She was asked to complete and update her job application for the County so she could either find a new job or go into disability retirement. (*Ibid*.)

On January 16, 2024, Plaintiff completed and submitted the County job application and received no response. (SAC, ¶ 27.) Thereafter, Plaintiff's manager advised her to find a job outside of the County because the County had no jobs to accommodate her restrictions, (*Id*., ¶ 28.)

On July 23, 2024, the County again notified Plaintiff that they could not accommodate her restrictions and requested that she provide information regarding her ability to return to work, or decision on a disability retirement, no later than July 29, 2024, or else the County would assume she had resigned. (SAC, ¶ 29.) That is, the County threatened Plaintiff with involuntary discharge or termination if she failed to return to work with no restrictions or if she refused to go into early disability retirement by July 29, 2024. (*Id.*, ¶ 30.) Because she was not able to return to work with no restrictions and refused to take early disability retirement by July 29, 2024, the County effectively terminated her employment. (*Ibid*.)

On October 11, 2024, the County's Labor Relations team contacted Plaintiff again about her disability retirement status and whether she had applied to CalPERS for benefits, confirming its decision to terminate her employment because of her disability status. (SAC, ¶ 31.)

Plaintiff initiated this action on April 15, 2025, for violations of the Fair Employment and Housing Act ("FEHA"), and filed a First Amended Complaint ("FAC") asserting claims for: (1) disability discrimination; (2) failure to provide reasonable accommodations; and (3) failure to engage in interactive process. Defendant subsequently demurred to each of the claims asserted in the FAC on the ground of failure to state facts sufficient to constitute a cause of action. On December 19, 2025, the Court sustained the demurer with leave to amend as to the second and third causes of action and overruled the demurrer as to the first cause of action.

Plaintiff filed the operative SAC on December 30, 2025, which asserts the same claims as the FAC. On February 2, 2026, Defendant filed the instant demurrer to the second and third causes of action on the ground of failure to state facts sufficient to constitute a cause of action. (Code Civ. Proc., § 430.10, subd. (e).) Plaintiff opposes the motion.

As explained in the Court's order on the preceding demurrer to the FAC, "The essential elements of a failure to accommodate claim are: (1) the plaintiff has a disability covered by the FEHA; (2) the plaintiff is a qualified individual (i.e., he or she can perform the essential functions of the position); and (3) the employer failed to reasonably accommodate the plaintiff's disability." (*Wilson v. County of Orange* (2009) 169 Cal.App.4th 1185, 1192.) "Two principles underlie a cause of action for failure to provide a reasonable accommodation. First, the employee must request an accommodation. Second, the parties must engage in an interactive process regarding the requested accommodation and, if the process fails, responsibility for the failure rests with the party who failed to participate in good faith. While a claim of failure to accommodate is independent of a cause of action for failure to engage in an interactive dialogue, each necessarily implicates the other." (*Geflo v. Lockheed Martin Corp*. (2006) 140 Cal.App.4th 34, 54 (*Gelfo*).)

Previously, the Court sustained Defendant's demurrer to this claim as pleaded in the FAC because it found, based on what was alleged in the pleading, that Defendant *had* made attempts to reasonably accommodate Plaintiff's disability. This included allegations that Plaintiff received an accommodation when she was placed on a modified work program and again when she was placed on leave until it became a burden to the County. (See FAC, ¶¶ 15, 19, 22.)

In the instant demurrer, Defendant asserts that this claim remains insufficient as a matter of law because Plaintiff still has not identified a reasonable accommodation that the County failed to provide. Plaintiff counters that she has alleged three failures to accommodate: (1) coworkers did not respond quickly enough when she needed help moving a patient while she was participating in the County Temporary Modified Return to Work Program; (2) the County placed her on leave after she was injured while working under that temporary modified-duty arrangement; and (3) the County did not later return her to work under the same modified-duty arrangement with continued assistance when moving and transporting patients. Ultimately, the Court agrees with Defendant.

With respect to the first purported failure, it occurred while Plaintiff was already being accommodated by being placed in a temporary modified-duty assignment. The Court is not aware of any authority which provides that a single alleged incident where Plaintiff was not assisted quickly enough nullifies the fact that the County already placed her in modified work as an accommodation. As Defendant notes, Plaintiff submits no authority which supports the notion that such an incident converts an *ongoing* accommodation into a denial of accommodation. Thus, the Court agrees with the County that this purported incident does not, without more, demonstrate a failure to accommodate.

Turning to the second alleged failure, Plaintiff challenges Defendant's decision to place her on leave after she was injured while working under the temporary modified-duty assignment. But as the Court already discussed in its prior order (see Order at fn. 2), while it is true, as Plaintiff maintains, that "[a]n employer cannot require a leave of absence when an employee can work with a reasonable accommodation other than a leave of absence," here Plaintiff was placed on leave *after* the second injury occurred, and the SAC does not materially alter this fact, as Plaintiff has merely added conclusions that the County should have continued providing assistance when moving and transporting patients. Plaintiff's reliance on *Wallace v. County of Stanislaus* (2016) 245 Cal.App.4th 109 and Title 2 Cal. Code Regs. § 11068 do not assist her because they address situations where an employee can work with a reasonable accommodation *other than* leave. They do not require an employer to continue temporary modified duty indefinitely, provide an accommodation that creates undue hardship, provide the employee's preferred accommodation, or maintain a temporary arrangement after it has proven unworkable. Plaintiff has not identified, aside from the temporary modified duty assignment that she was provided, other reasonable accommodations which were available that would not have unduly burdened the County or other employees.

Finally, Plaintiff argues that "[w]hile she was out, she continued to make efforts to seek accommodations and come back to work" and that the County "refused to extend that accommodation." (Opp. at 6-7). But not only has she not identified these efforts with any detail (see below), the County was not legally obligated to convert a temporary light-duty assignment into a permanent position or indefinitely provide the specific accommodation requested by her. (See *Raine v. City of Burbank* (2006) 135 Cal.App.4th 1215, 1227-1228.) Plaintiff notably does not address this legal precedent, and thus impliedly concedes the merits of the County's argument. She also fails to plead facts which show that extension of the *temporary* modified work program she was placed in would be a reasonable *permanent* accommodation by the County. Thus, this is insufficient to plead a failure to accommodate.

Given the foregoing, Plaintiff's second cause of action is still defective. Accordingly, Defendant's demurrer to this claim on the ground of failure to state fact sufficient to constitute a cause of action is SUSTAINED WITHOUT LEAVE TO AMEND.

Turning to the third cause of action, FEHA makes it unlawful for an employer "to fail to engage in a timely, good faith, interactive process with the employee or applicant to determine effective reasonable accommodations, if any, in response to a request for reasonable accommodation by an employee or applicant with a known physical ... disability. . (*Claudio v. Regents of University of California, supra*, 134 Cal.App.4th at 243.)" (*Gelfo, supra,* 140 Cal.App.4th at 61.) The employee has the burden of engaging in the interactive process and suggesting reasonable accommodations to her employer. (See *Scotch v. Art Institute of California* (2009) 173 Cal.App.4th 986, 1018 ["To prevail on a claim under section 12940, subdivision (n) for failure to engage in the interactive process, an employee must identify a reasonable accommodation that would have been available at the time the interactive process should have occurred."].)

The demurrer to this claim as alleged in the FAC was sustained based on Plaintiff's failure to allege a reasonable accommodation that was available to her but not provided by Defendant. The Court explained that the FAC was "devoid of allegations that Plaintiff engaged in efforts to communicate with Defendant regarding reasonable accommodations" and thus she failed to sufficiently allege failure to engage in the interactive process. (December 19, 2025 Court Order on Demurrer to FAC at 11:17-18.)

Defendant maintains that this claim still suffers from this same defect. It explains that Plaintiff has admitted that she made no effort to engage in the interactive process because, as reflected in the allegations of the SAC and prior iterations of the complaint, after being placed on leave on February 9, 2022, she remained absent until the *County*- *not* Plaintiff- reached out with a letter on January 5, 2024. (SAC, ¶¶ 16, 26, 27.) Plaintiff was provided with an opportunity to amend, but does not allege that she reached out to the County during the two-year period. She concedes in the SAC that the County reached out to her during her leave of absence at least on January 5, 2024 (*id*. ¶ 26), July 23, 2024 (*id*. ¶ 29), and October 11, 2024 (*id*. ¶ 31), but there are *no* allegations that Plaintiff responded to any of these communications or otherwise initiated an interactive discussion with the County in which she proposed a reasonable accommodation that existed beyond the Temporary Modified Return to Work Program in which she already participated. While Plaintiff alleges she submitted a job application to the County, she notably does not identify a vacant position at her same level that she could perform. (SAC, ¶ 27.)

Plaintiff cites paragraphs 23 and 24 as correcting this deficiency in her failure to engage cause of action, which assert that after being placed on leave, she "continued to inform" the County of her restrictions, "communicated" that she wanted to return with assistance moving patients, and made "continuing requests" to return. But these generalized allegations merely restate her previous generic allegation that she "continued to inform the County about her restrictions," which the Court has *already* found insufficient. (*Ibid*.) Further, no specifics are offered regarding *when* these communications took place, to whom they were made and what they consisted of such that there is nothing pleaded in the SAC which shows that Plaintiff initiated or participated in the interactive process with the County during her two-year absence from work. Thus, this claim is still defective because Plaintiff fails to plead facts showing she engaged in the interactive process. Consequently, Defendant's demurrer to the third cause of action on the ground of failure to state facts sufficient to constitute a cause of action is SUSTAINED WITHOUT LEAVE TO AMEND.

The Court will prepare the final order.

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Calendar Line 6

Case Name: *Capital One, N.A. v. Wright*
Case No.: 26CV484320

BACKGROUND

Plaintiff Capital One, N.A. ("Plaintiff") brings this action for breach of contract against Defendant Kathie Wright ("Defendant") with regards to a credit card account. Plaintiff alleges "Defendant failed to make payments on the contract as agreed, and despite Plaintiff's demand, Defendant continues to refuse to pay Plaintiff in the amount owed under the contract." (Complaint at p. 3.) Defendant is in default and the unpaid balance owed is $6,051.39. (*Ibid.*)

Defendant moves to arbitrate these claims based on the Cardmember Agreement ("the Agreement"). Having reviewed the Agreement, the unopposed motion is GRANTED.

LEGAL STANDARD

Defendant maintains the Federal Arbitration Act ("FAA") governs the Agreement. The Agreement provides, "[t]his arbitration agreement is governed by the Federal Arbitration Act ('FAA')." (Mtn. to Compel Arbitration, Ex. A at p. 3.) Under the FAA, the court's role is limited to determining "(1) whether a valid agreement to arbitrate exists, and if it does (2) whether the agreement encompasses the dispute at issue." (*Chiron Corp. v. Ortho Diagnostic Systems, Inc.* (9th Cir. 2000) 207 F.3d 1126, 1130.) To determine "whether a valid contract to arbitrate exists," courts apply "ordinary state law principles that govern contract formation." (*Davis v. Nordstrom, Inc.* (9th Cir. 2014) 755 F.3d 1089, 1093 [citations omitted]; see also *Ingle v. Circuit City Stores, Inc.* (9th Cir. 2003) 328 F.3d 1165, 1170.)

ANALYSIS

There is a Valid Agreement to Arbitrate

A valid agreement to arbitrate exists between the parties. The moving party bears the burden of producing prima facie evidence of an agreement to arbitrate the controversy. The moving party can meet its initial burden by attaching to the [motion or] petition a copy of the arbitration agreement purporting to bear the [opposing party's] signature." (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165 [internal citations and quotations omitted].) Here, Defendant has attached a copy of the Cardmember Agreement containing the arbitration clause as an exhibit to her motion. (Mtn. to Compel Arbitration, Ex. A.) Although the Agreement does not bear any signatures by either party, "it is not the presence or absence of a signature which is dispositive; it is the presence or absence of evidence of an *agreement* to arbitrate which matters." (*Banner Entertainment, Inc. v. Superior Court* (1998) 62 Cal.App.4th 348, 361 [emphasis in original].) In this instance, the memorialized terms of arbitration in the Cardmember Agreement are evidence of an agreement to arbitrate. Additionally, Plaintiff's effort to enforce the Agreement is evidence of her intent to be bound by its terms. (*Serafin v. Balco Properties, LLC* (2015) 235 Cal.App.4th 165, 176 ["Evidence confirming the existence of an agreement to arbitrate, despite an unsigned agreement can be based, for example on conduct from which one could imply either ratification or implied acceptance of such a provision."].) Therefore, a valid agreement to arbitrate exists between the parties.

The Scope of the Agreement Covers Plaintiff's Claims

The scope of the arbitration provision in the Cardmember Agreement covers Plaintiff's claims. The Agreement provides:

> In the event of a dispute between you and us, arising out of or relating to this Account or the relationships resulting from this Account or any other dispute between you or us, including, for example, a dispute based on federal or state statute or local ordinance ("Claim"), either you or we may choose to resolve the Claim by binding arbitration, as described below instead of in court.

(Mtn. to Compel Arbitration, Ex. A.)

Plaintiff's claim pertains to the credit card account held by Defendant. Plaintiff's allegations are that Defendant has failed to make payments on the account and is now in default of $6,051.39. (Complaint at p. 3.) Thus, Plaintiff's claims are covered by the scope of the Agreement.

Plaintiff does not object to these arguments. In fact, Plaintiff has not filed any opposition whatsoever. The failure to timely file an opposition is a basis for the Court to grant the motion, as the Court may construe such non-opposition as a concession that the motion is meritorious. (See *D.I. Chadbourne, Inc. v. Super. Ct.* (1964) 60 Cal.2d 723, 728, fn. 4; see also Cal. Rule of Court 8.54, subd. (c) [appellate rule stating that "[a] failure to oppose a motion may be deemed consent to granting of the motion"].)

For these reasons, the Court GRANTS the Motion to Compel Arbitration. This action is hereby STAYED pending the outcome of arbitration. (Code Civ. Proc. § 1281.4; 9 U.S.C. § 3.)

CONCLUSION

The Motion to Compel Arbitration is GRANTED. This action is STAYED pending the outcome of arbitration.

The matter shall be set for a Status Review re: Arbitration on February 5, 2027 at 11:00 a.m. in Department 13.

Moving party shall prepare and submit the final order, accompanied by the necessary Form EFS-020, within 10 days of the date of the hearing.

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